

Court No. - 38

Case :- WRIT - C No. - 32231 of 2018

Petitioner :- Tikaram

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Kailash Nath Kesharwani

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Abhinava Upadhya,J.

Hon'ble Rajiv Gupta,J.

Heard learned counsel for the petitioner; Shri Shyam Singh Yadav, learned counsel for the electricity department-respondents no. 3 & 4 and learned Standing Counsel for the State-respondents no. 1 & 2.

The petitioner claims that he had taken an electricity connection for running a tube-well in 2009. It is submitted that the meter was installed, but no bill was ever given to the petitioner nor any reading was taken by the authorities of the electricity department. The petitioner was worried with regard to bill and, therefore, on his own deposited about Rs. 20,000/- on 24.10.2009 and thereafter another Rs. 20,000/- on 11.9.2012 which was accepted by the authorities, but bill was never given to the petitioner. The petitioner submits that he sold his property as Arazi No. 393 and Arazi No. 430 situated in Village-Mahtoli, Pargana-Sikandara, District-Ramabai Nagar (Kanpur Dehat) vide a sale deed dated 24.9.2013 and also applied for permanent disconnection which was never considered. It is further submitted that the petitioner made several representations to the authorities to intimate the petitioner the outstanding dues so that the same can be paid. The petitioner had also applied for 'One Time Settlement' (O.T.S.) and deposited the O.T.S. registration fee of Rs. 2,500/- on 9.12.2016 which was also not considered and now straightaway a recovery certificate has been issued for a sum of Rs 1,30,000/- and odd on 17.11.2017. The petitioner submits that the amount in the recovery certificate is inflated as under no circumstances the petitioner is liable to pay. For running the tube well the petitioner has already deposited Rs. 40,000/- and his application for O.T.S. has also not been considered.

It appears that there is a dispute of bills, therefore, the petitioner may approach the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005.

In case the petitioner makes an application under the aforesaid provision along with a certified copy of this order, the same be considered by the Executive Engineer and appropriate orders be passed within two months from today provided the petitioner makes such an application within a week.

For a period of two months, no coercive action shall be taken against the petitioner pursuant to recovery certificate dated 17.11.2017.

With the aforesaid observations/directions, the writ petition is disposed of.

Order Date :- 24.9.2018
Sunil Kr. Gupta

(Rajiv Gupta, J.) (Abhinava Upadhya, J.)